

Aijaz Khan v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 3 October 2024 · 2024:AHC:162281-DB · WRIT - C No. 31714 of 2024 · **Petition disposed; restore connection; fresh demand under the Code.**

HEADNOTE

After the electricity respondents recalled the recovery certificate issued on a consumption demand, the writ was disposed of with a direction to restore the petitioner's electricity connection forthwith. Any fresh demand was permitted only by availing the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Aijaz Khan challenged, in Writ-C No. 31714 of 2024 before the Allahabad High Court, an order dated 17 August 2024 by which the electricity respondents raised a demand for consumption of electricity and pursued a recovery certificate. He said no hearing was given and no document of the alleged use was supplied. On 27 September 2024 a Division Bench adjourned the petition for the department to obtain instructions. While the writ was pending, the respondents on 21 September 2024 recalled the recovery certificate.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Code, 2005

Restoration after recall of a recovery certificate; fresh demand only under the Supply Code

HOLDING

The writ against the consumption demand dated 17.08.2024 was disposed of because the respondents had, on 21.09.2024, recalled the recovery certificate. The respondents must restore the petitioner's electricity connection forthwith. If they seek to raise any demand, they must avail the provisions of the Electricity Supply Code, 2005. ¶ 3-4

FLAG The order requires resort to the Electricity Supply Code, 2005 but states no clause number.

PRINCIPLE TAGS

restore-connection-fresh-demand-under-code Recall of the recovery certificate during the writ led to disposal and a direction to restore supply forthwith; a further consumption demand may be raised only by availing the Electricity Supply Code, 2005. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND ORDER DATED 17.08.2024 VIOLATED NATURAL JUSTICE OR ANY SPECIFIC PROVISION OF THE ELECTRICITY SUPPLY CODE, 2005.

The recovery certificate was recalled on 21.09.2024, and the court disposed of the petition on that fact without a finding on the original demand. ¶ 2-4